

GINSBURG, J., dissenting

plied a “presumption against extraterritorial application” to statutes that do not make plain their governance beyond U. S. borders. *Kiobel v. Royal Dutch Petroleum Co.*, 569 U. S. 108, 115 (2013). But plaintiffs in this case allege a tort stemming from stateside conduct. Cf. *id.*, at 124–125 (if conduct at issue “touch[es] and concern[s] the territory of the United States . . . with sufficient force,” the presumption against extraterritoriality is displaced). This case scarcely resembles those in which applying “U. S. law . . . to conduct in foreign countries” might spark “international discord.” *RJR Nabisco, Inc. v. European Community*, 579 U. S. 325, 335 (2016). Quite the opposite. Withholding a *Bivens* suit here threatens to exacerbate bilateral relations, see *supra*, at 127, and in no way fosters our international commitments, see *supra*, at 127–128.

V

Regrettably, the death of Hernández is not an isolated incident. Cf. *Rodriguez*, 899 F. 3d, at 727 (complaint alleged that border agent fired 14 to 30 bullets across the border, killing a 16-year-old boy); Brief for Immigrant and Civil Rights Organizations as *Amici Curiae* 26–28 (describing various incidents of allegedly unconstitutional conduct by border and immigration officers); Brief for Border Network for Human Rights et al. as *Amici Curiae* 8–15 (listing individuals killed by border agents). One report reviewed over 800 complaints of alleged physical, verbal, or sexual abuse lodged against Border Patrol agents between 2009 and 2012; in 97% of the complaints resulting in formal decisions, no action was taken. D. Martínez, G. Cantor, & W. Ewing, No Action Taken: Lack of CBP Accountability in Responding to Complaints of Abuse, American Immigration Council 1–8 (2014), americanimmigrationcouncil.org/sites/default/files/research/No%20Action%20Taken_Final.pdf. According to *amici* former Customs and Border Protection officials, “the United States has not extradited a Border Patrol agent to stand trial